

Hetram v. State of U.P. — excessive bill writ dismissed for Clause 6.5(b) remedy

Allahabad High Court · Division Bench · 9 February 2016 · Writ-C No. 5550 of 2016 · **Writ dismissed; liberty to avail Clause 6.5(b) excessive-bill remedy.**

HEADNOTE

A consumer who had a Kutir Jyoti (BPL) connection challenged a distribution licensee's bill as highly excessive and as covering a period of disconnection. The Division Bench held that Clause 6.5(b) of the Uttar Pradesh Electricity Supply Code, 2005 is a statutory alternative remedy for a dispute regarding an excessive bill, declined to examine the bill in the first instance, and dismissed the writ with liberty to avail that remedy.

FACTUAL SUMMARY

Hetram claimed a Kutir Jyoti electricity connection given to persons below the poverty line. He challenged a bill raised by the Executive Engineer of Madhyanchal Vidyut Vitran Nigam Limited, Budaun, as highly excessive and covering even a period of disconnection. In substance he disputed the entire bill. Counsel for the respondents pointed to a statutory alternative remedy under Clause 6.5(b) of the Uttar Pradesh Electricity Supply Code, 2005.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5(b)

excessive bill — statutory alternative remedy

HOLDING

Clause 6.5(b) of the Uttar Pradesh Electricity Supply Code, 2005 is a statutory alternative remedy for a consumer disputing an excessive electricity bill; the High Court will not examine the correctness of such a bill in the first instance, and the writ is dismissed with liberty to avail that remedy. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE BILL WAS EXCESSIVE OR INCLUDED CHARGES FOR A PERIOD OF DISCONNECTION

The Court declined to examine the correctness of the bill in the first instance. ¶ 1